

The Hindu Disposition of Property Act, 1997 (1940 A. D.)

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State of Jammu-Kashmir - Act

The Hindu Disposition of Property Act, 1997 (1940 A. D.)

JAMMU & KASHMIR

India

The Hindu Disposition of Property Act, 1997 (1940 A. D.)

Act 16 of 1997

Published on 7 December 1940

Commenced on 7 December 1940

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The Hindu Disposition of Property Act, 1997 (1940 A. D.)

Act

No. 16 of 1997

[Received the assent of His Highness the Maharaja Bahadur on 7th December, 1940/23rd Maghar, 1997 and published in Government Gazette dated 4th Magh, 1997.]

An Act to remove certain existing disabilities in respect of the power of disposition of property by Hindus for the benefit of persons not in existence at the date of such disposition.

Whereas it is expedient to remove certain existing disabilities in respect of the power of disposition of property by Hindus for the benefit of persons not in existence at the date of such disposition ; it is hereby enacted as follows:-

1.

Short title and extent.

(a)

This act may be called the Hindu Disposition of Property Act, 1997.

(b)

It extends to the whole State of Jammu and Kashmir.

2.

Disposition for the benefit of persons not in existence.

- Subject to the limitation:, and provisions specified in this act, no disposition of property by a Hindu, whether by transfer inter vivos or by will, shall be invalid by reasons only that any person for whose benefit it may have been made was not in existence at the date of such disposition.

3.

Limitations and conditions.

- The limitations and provisions referred to in section 2 shall, in respect of dispositions by transfer inter vivos, be those contained in Chapter II of the Jammu and Kashmir Transfer of property Act.

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